

HOUSE No. 58

House bill No. 57, as amended and passed to be engrossed by the House. February 6, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making appropriations for fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects.

Whereas, The deferred operation of this act would tend to defeat its purposes, which are to make supplemental appropriations for fiscal year 2025 and to make certain changes in law, each of which is immediately necessary to carry out those appropriations or to accomplish other important public purposes, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2025, the sums set forth in section 2A are hereby
3 appropriated from the General Fund unless specifically designated otherwise in this act or in
4 those appropriation acts, for the several purposes and subject to the conditions specified in this
5 act or in those appropriation acts, and subject to the laws regulating the disbursement of public
6 funds for the fiscal year ending June 30, 2025. These sums shall be in addition to any amounts
7 previously appropriated and made available for the purposes of those items. These sums shall be
8 made available through the fiscal year ending June 30, 2026.

SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to provide for an alteration of purpose for current appropriations, and to meet certain requirements of law, the sums set forth in this section are hereby appropriated from the General Fund or the Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this section, for the several purposes and subject to the conditions specified in this section, and subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30, 2025. Except as otherwise stated, these sums shall be made available through the fiscal year ending June 30, 2026.

1599-2625 For purposes related to supportive services and safe shelter for unhoused families in Massachusetts; provided, that the secretary of administration and finance may transfer funds from this item to state agencies as defined in section 1 of chapter 29 of the General Laws; provided further, that temporary respite sites shall be available to families upon arrival in the commonwealth for a period of not more than 30 days; provided further, that funds appropriated in this item may be expended for any of the purposes described in item 1599-0514 of chapter 77 of the acts of 2023, item 1599-1213 of chapter 88 of the acts of 2024, and items 7004-0101, 7004-0108, and 7004-9316 of chapter 140 of the acts of 2024; provided further, that the secretary of administration and finance may transfer funds from this item to the Workforce Competitiveness Trust Fund, established in section 2WWW of chapter 29 of the General Laws, for work programs targeted at supporting the populations served by this item; and provided further, that reporting requirements under said items 1599-0514 and 1599-1213 shall apply to this item as well.....\$425,000,000

Transitional Escrow Fund.....100%

SECTION 3. Section 30 of chapter 23B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after paragraph (C) the following paragraph:-

(C 1/2)(1) The executive office shall require each individual adult applicant or beneficiary to disclose on their initial or subsequent application for emergency housing assistance benefits all prior criminal convictions, whether in the commonwealth or another jurisdiction. The executive office shall not require prior convictions that have been sealed or expunged to be disclosed. Any adult applicant or beneficiary who fails to disclose prior criminal convictions consistent with this paragraph shall not be eligible for benefits and any existing benefits shall be terminated.

(2) The executive office shall obtain criminal offender record information from the department of criminal justice information services for each individual adult applicant or beneficiary prior to placement into the emergency housing assistance program. The executive office shall establish, through regulations, protocols on information received from the department of criminal justice information services.

SECTION 4. Paragraph (G) of said section 30 of said chapter 23B, inserted by section 3 of chapter 88 of the acts of 2024, is hereby amended by striking out subparagraphs (3) through (9), inclusive, and inserting in place thereof the following 6 subparagraphs:-

(3) A family with children or a pregnant woman with no other children that receives benefits through the emergency housing assistance program shall, subject to appropriation and rules and regulations, remain eligible for the program for not more than 6 consecutive months.

(4) Any family or pregnant woman with no other children may receive extensions upon written certification of hardship by the secretary; provided, however, that hardship waivers shall

be granted by the secretary for a family with an individual who is: (i) qualified as a veteran under clause Forty-third of section 7 of chapter 4 who is not enrolled in services specifically tailored to veterans, including, but not limited to, those administered by the executive office of veterans services; (ii) under the age of 6; (iii) at imminent risk of harm due to domestic violence; or (iv) documented as having a disability.

(5) The executive office shall limit the number of families and pregnant women with no other children to be terminated from the emergency housing assistance program in any week due to reaching the durational limit established in subparagraph (3). The executive office shall provide notice not less than 90 days prior to the termination of benefits for each family and pregnant woman.

(6) The executive office shall promulgate regulations or guidance for eligibility which shall: (a) establish procedures for the termination of benefits pursuant to this paragraph, including for a hardship waiver under subparagraph (4); and (b) allow a family with children or a pregnant woman with no other children to reapply for the emergency housing assistance program; provided, that eligibility determinations when reapplying for the program shall be consistent with the guidance issued by the secretary of housing and livable communities on October 31, 2023, entitled “Emergency Assistance Program Guidance on Waitlist and Prioritization Procedures pursuant to Capacity Declaration dated October 31, 2023” pursuant to 760 CMR 67.10, as inserted by emergency regulations issued by the executive office of housing and livable communities on October 31, 2023.

(7) The executive office shall provide printed handouts to families with children and pregnant women receiving benefits through the emergency housing assistance program which

shall include, but shall not be limited to, information about: (a) authorized training programs; (b) approved training programs; (c) food resources, including food pantries; (d) services offered by resettlement agencies; (e) other housing programs; (f) other nonprofit or available resources the executive office deems necessary or helpful; and (g) duration of stay limit and extension process. All written information shall be translated into multiple languages and shall be available on the executive office's website.

(8) This paragraph shall apply during any period in which the secretary of housing and livable communities has determined that the shelter system is no longer able to meet all current and projected demand for shelter from eligible families considering the facts and circumstances then existing in the commonwealth.

SECTION 5. Said section 30 of said chapter 23B, as amended by said chapter 88, is hereby further amended by adding the following paragraph:-

(H) The executive office shall require each adult applicant or beneficiary that joins a family that is receiving emergency assistance benefits to provide notice to the executive office of any addition to the family and the executive office shall require a complete review of all information necessary to verify the individual's eligibility pursuant to this section and 760 CMR 67.00 or successor regulations. Any adult applicant or beneficiary who fails to report to the executive office for complete verification of requirements pursuant to this section or 760 CMR 67.00 or successor regulations shall not be eligible for benefits and any existing benefits shall be terminated.

SECTION 5A. Section 19 of chapter 88 of the acts of 2024 is hereby amended by striking out the words "and (xvi) any efforts undertaken by the executive office for administration and

finance to secure and maximize federal support and reimbursement for funds spent on the emergency housing assistance program” and inserting in place thereof the following words:-
(xvi) any efforts undertaken by the executive office for administration and finance to secure and maximize federal support and reimbursement for funds spent on the emergency housing assistance program; and (xvii) the total weekly number of families who have exited the emergency housing assistance program by durational limit termination.

SECTION 6. (a) For the purposes of this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

“Emergency housing assistance program”, a program of emergency housing assistance pursuant to section 30 of chapter 23B of the General Laws.

“Executive office”, the executive office of housing and livable communities.

(b) Notwithstanding item 7004-0101 of section 2 of chapter 140 of the acts of 2024, the executive office shall:

(1) require families whose income exceeds 200 per cent of the federal poverty level for 3 consecutive months to be deemed no longer eligible for the emergency housing assistance program;

(2) require that all benefits under said item 7004-0101 shall only be provided to families consisting entirely of residents of the commonwealth who are citizens of the United States or persons lawfully admitted for permanent residence or otherwise permanently residing under the color of law in the United States, except in cases where a child in the family is a citizen of the United States, a person lawfully admitted or a person permanently residing under color of law;

(3) to the extent practicable, make best efforts to place a family within 20 miles of the household's home community;

(4) verify for each applicant: (a) identity; (b) Massachusetts residency pursuant to paragraph (5); (c) relationship status; (d) pregnancy status; and (e) other eligibility requirements in said item 7004-0101 and pursuant to 760 CMR 67.00 or any successor regulations, through third-party verification or otherwise, prior to placement in an emergency shelter. The executive office shall not be required to provide shelter to families who are unable to provide required verifications in this section prior to placement; provided, however, that the executive office may offer a case-specific waiver for exigent circumstances and at the discretion of the executive office; and provided further, that the executive office shall define through regulations said case-specific waivers which shall include, but shall not be limited to, an imminent threat of domestic violence, families with a child under the age of 6, families with a family member who has a documented disability and a qualified veteran under clause Forty-third of section 7 of chapter 4 who are not enrolled in services specifically tailored to veterans, including, but not limited to, those administered by the executive office of veterans services; and

(5) require each applicant for benefits under the emergency housing assistance program to establish Massachusetts residency, an applicant shall be required to show an intent to remain in Massachusetts, which may be shown through sources of verification accepted by the executive office. The executive office shall promulgate regulations on sources of acceptable verification which shall include, but shall not be limited to, documentation showing a person receives MassHealth, documentation showing a person receives public benefits in Massachusetts, a bill or other insurance documentation with an address, email, letter or statement from a licensed health

141 care worker on office letterhead or office email stating that the person lives in Massachusetts or a
142 Massachusetts photo identification.

143 SECTION 7. Notwithstanding section 30 of chapter 23B of the General Laws, beginning
144 December 31, 2025 through December 31, 2026, the total capacity of the emergency housing
145 assistance program established pursuant to said section 30 of said chapter 23B shall not exceed
146 4,000 families.

147 SECTION 8. Notwithstanding any general or special law to the contrary, any funds
148 expended for the purpose of providing services through or related to families and pregnant
149 women served by the emergency housing assistance program pursuant to section 30 of chapter
150 23B of the General Laws shall be subject to a competitive bidding process.